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Case Number: 21STCV38730 Hearing Date: September 11, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

JOHN CHOU,

Plaintiff,

vs.

AIR TIGER EXPRESS (USA) INC., et al.,

Defendants.

Case No.:

21STCV38730

Hearing Date:

September 11, 2026

Hearing Time:

10:030 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFF JOHN

CHOU'S MOTION TO STAY ALL PROCEEDINGS PENDING APPEAL

Background

Plaintiff

John Chou ("Chou") filed this action on October 20, 2021 against Defendants Air Tiger Express (USA) Inc. ("ATE") and Matthew Tran (jointly, "Defendants"). The Complaint alleges five causes of action for (1) discrimination on the basis of age, (2) harassment, (3) retaliation, (4) failure to prevent discrimination, harassment, or retaliation, and (5) wrongful termination in violation of public policy.

On December 2, 2025, the Court granted ATE's motion to disqualify Chou's counsel.

On February 13, 2026, Chou filed a notice of appeal as to the December 2, 2025 Order disqualifying his counsel.

Chou

moves for an order staying all proceedings in this action pending appeal. Defendants oppose. Chou replied.

Jury

trial is currently set for October 14, 2026.

Legal Standard

"[C]ourts have inherent authority to control their own calendars and dockets" (Walker v. Superior Court (1991) 53 Cal.3d 257, 267), which includes "the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489; see also Cottle v. Superior Court (1992) 3 Cal.App.4th 1367, 1377 ["courts have inherent equity, supervisory and administrative powers [citation] as well as inherent power to control

litigation before them.”]; *Rutherford v. Owens-Illinois, Inc.* (1997) 16 Cal.4th 953, 967 [“That inherent power entitles trial courts to exercise reasonable control over all proceedings connected with pending litigation ... in order to insure the orderly administration of justice.”].)

Discussion

Chou seeks a complete discretionary stay for all proceedings pending the outcome of the appeal disqualifying his attorney. Chou contends that a complete stay is necessary to preserve meaningful appellate relief, that balancing of hardships supports a stay, that the approaching five-year deadline makes a complete stay “essential,” and that Defendants will not suffer cognizable prejudice.

“Code of Civil Procedure section 916, subdivision (a) explains that the perfecting of an appeal stays proceedings in the trial court ‘upon the ... order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the ... order, but the trial court may proceed upon any other matter embraced in the action and not affected by the ... order.’ The purpose of the automatic stay provision is to preserve the status quo and protect the appellate court’s jurisdiction.” (*A.F. v. Jeffrey F.* (2023) 90 Cal.App.5th 671, 681.) “However, an order disqualifying an attorney is treated differently.” (*Ibid.*)

“[A]n order disqualifying an attorney is automatically stayed by an appeal” (*URS Corp. v. Atkinson/Walsh Joint Venture* (2017) 15 Cal.App.5th 872, 887 (*URS Corp.*)) “because doing so prevents mooted the appeal through the replacement of counsel.” (*A.F. v. Jeffrey F.*, *supra*, 90 Cal.App.5th at p. 682.) Whereas “ongoing litigation directed toward the resolution of the parties’ respective pleadings is not automatically stayed by [the] appeal.” (*URS Corp.* at p. 888.) “‘In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results.’ [Citation.] Trial court proceedings must be stayed if they would conflict with the appellate court’s jurisdiction.” (*Id.* at pp. 887-888.)

Chou asserts that a complete stay is necessary here because the five-year deadline is approaching. Code of Civil Procedure section 583.310 provides, “[a]n action shall be brought to trial within five years after the action

is commenced against the defendant.” Pursuant to Code of Civil Procedure section 583.360, “(a) An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article. (b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.” “In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which ... [p]rosecution or trial of the action was stayed or enjoined.” (Code Civ. Proc., § 583.340, subd. (b).) “A complete stay will operate to automatically toll the five-year period. A partial stay will not do so unless it results in a circumstance of impossibility, impracticability, or futility.” (Gaines v. Fidelity National Title Ins. Co. (2016) 62 Cal.4th 1081, 1087.)

Chou states that “[b]ecause the Complaint was filed October 20, 2021, the unadjusted five-year date is October 20, 2026.” (Mot., 8:4-5.) Chou requests that the Court “avoid th[e] uncertainty” of a partial stay and requests that “[t]he order [] state expressly that ‘all prosecution and trial proceedings in this action are stayed,’ and should identify that the stay includes trial setting, trial, fact and expert discovery, dispositive motions, pretrial motions, and all merits related deadlines. The Court may retain jurisdiction solely for appellate status conferences, preservation orders, enforcement of the stay, and matters that do not advance the merits. Such a complete stay fits section 583.340(b) and provides a clear, administrable record.” (Mot., 8:12-17.) Chou contends that “[a] mere continuance of a trial setting conference or selective suspension of deadlines would be inadequate. It would leave Plaintiff exposed to a mandatory-dismissal argument while the appeal consumes the remaining statutory time. The requested complete stay is therefore not a device for delay; it is the most cautious means of preserving both the action and the appellate process.” (Mot., 8:18-21.)

Chou also asserts prejudice, contending that “[t]he hardship to Plaintiff is immediate and irreparable. Plaintiff is an individual litigant asserting FEHA and wrongful-termination claims against a corporate employer represented by experienced counsel. He lacks the legal training to conduct discovery strategy, expert proceedings, motions in limine, voir dire, direct and cross-examination, evidentiary objections, jury instructions, verdict forms, and a multi-day jury trial. Replacement counsel

would be required to absorb years of discovery and case history under severe time pressure and with the five-year date approaching. The judicial burden is equally significant. A jury trial will require final status proceedings, motions in limine, exhibit and witness disputes, jury selection, testimony, evidentiary rulings, instructions, deliberations, and likely posttrial motions. Conducting those proceedings while the identity and authority of Plaintiffs trial counsel are under appellate review risks duplicating much or all of that work.” (Mot., 7:13-23.)

Chou also asserts that the stay is necessary to preserve meaningful appellate relief because “[p]roceeding without Plaintiff’s former counsel would deprive Plaintiff of the fruits of a reversal. Proceeding with former counsel through trial, while legally permitted by the automatic stay of the disqualification order, would expose the proceedings to avoidable challenges if the order is later affirmed. Either course risks posttrial motion practice, another appeal, or repetition of substantial proceedings. The requested stay is not premised on speculation that an appeal may someday proceed. The Court of Appeal has already considered and rejected Defendants’ request to dismiss Appeal No. B353372.” (Mot., 6:22-7:2.)

In opposition, Defendants contend that they will be “substantial[ly] prejudice[d]” because “[a] stay or further continuance would impose additional and unnecessary costs, including renewed witness preparation and additional attorney time. (Smith Decl., ¶ 12.) More importantly, further delay creates a substantial risk that witness recollections will continue to fade, evidence will become more difficult to obtain and present, and the parties’ ability to fairly adjudicate the claims will be diminished. Defendants should not be forced to bear these burdens when they have acted diligently and stand ready for trial, where Plaintiff’s counsel’s conduct necessitated disqualification, and where Plaintiff failed to act diligently either by seeking new counsel or by promptly pursuing writ relief instead of an appeal.” (Opp., 5:2, 5:10-17.)

Defendants also state that “[e]ven when a party seeks a discretionary stay, courts recognize that the strength of the preliminary showing affects whether a stay should be granted,” which Defendants contend “Plaintiff’s motion does not address the merits of his appeal. Apart from stating that the appeal is ‘active,’ Plaintiff identifies no grounds for appeal and offers no explanation as to why the appeal is likely to succeed.” (Opp., 6:12-13, 6:18-20.) Defendants cite Reed v. Superior

Court (2001) 92 Cal.App.4th 448 (Reed) to support Chou's need to make a preliminary showing of success. However, as Chou points out in reply, "Defendants contend Plaintiff must demonstrate to this Court that its own ruling is 'likely erroneous'... [Reed] does not support that proposition. Reed's merits-showing discussion expressly concerns the appellate court's supersedeas analysis, not the Superior Court's exercise of discretionary stay authority." (Reply, 2:18-22.) Specifically, Reed pertained to a trial court's denial of a disqualification motion, the trial court's subsequent stay of all proceedings, and the opposing party's petition to the appellate court for a writ of mandate to proceed with pretrial proceedings. (Reed, supra, at pp. 450-452.) The Reed court expressed that "an appeal from an order denying disqualification of counsel involves a collateral matter." (Reed v. Superior Court (2001) 92 Cal.App.4th 448, 453, fn. 2.) The court also stated that, "[i]f the trial court denies a motion to disqualify counsel, the unsuccessful moving party can seek immediate appellate review, either by petitioning the reviewing court for a writ of mandamus, asserting that the remedy by appeal is not adequate [citation] or by filing a notice of appeal from the order denying disqualification. [Citation.] If the moving party desires that the trial be stayed pending appeal, the party may first ask the trial court in its discretion to continue or stay the underlying proceedings until the appeal is decided." (Id. at p. 455.) Thus, Defendants' request that Chou show this Court that the appeal is meritorious is not required.

The Court finds that URS Corp., supra, helps explain that Reed is not wholly applicable to the instant case. There, the court discussed this issue: "Motions to disqualify attorneys are often filed for tactical reasons. This observation was offered as support for Reed's holding that appeals of orders denying disqualification motions should not stay trial court proceedings. (Reed, supra, 92 Cal.App.4th at p. 456, 111 Cal.Rptr.2d 842 [contrary rule would encourage 'pretrial disqualification motions and appeals as trial strategy to simply delay the trial of meritorious cases'].) But the converse is not true. Attorneys are not intentionally baiting opposing parties into filing disqualification motions. Attorneys are not intentionally losing these motions and appealing to obtain a stay of trial court proceedings. In our experience, appeals (or writ petitions) challenging orders granting attorney disqualification are not being filed for purposes of delay. They are filed because there are fundamental disagreements about whether the disqualified attorneys have engaged in conduct that requires their disqualification. (See, e.g., McDermott Will & Emery LLP v.

Superior Court (2017) 10 Cal.App.5th 1083, 217 Cal.Rptr.3d 47.) There is little incentive to appeal (and thereby draw attention to alleged ethical lapses) when disqualification is obviously necessary under the facts of the case.” (US Corp., supra, 15 Cal.App.5th at p. 887.)

Defendants also assert that

“Plaintiff waited more than two months to file his Notice of Appeal. (Smith Decl., ¶¶ 3, 5.) He then failed to timely file the documents and deposits required to prepare the appellate record and move the appeal forward... Plaintiff filed his notice designating the record on appeal one month after filing his Notice of Appeal and then failed to pay the required deposits, further delaying the appellate process. (Smith Decl., ¶ 6; Exh. C.) If Plaintiff genuinely believed the disqualification order was erroneous and required immediate review because of the approaching five-year deadline, he could have sought writ relief. Alternatively, on appeal, Plaintiff could have used an appendix instead of ordering a clerk’s transcript and could have attached a certified copy of the reporter’s transcript to his designation notice to expedite the process. (Smith Decl., ¶ 6; Exh. C.) Plaintiff also could have moved for calendar preference in the Court of Appeal. (Cal. Rules of Ct., rule 8.240.) Plaintiff’s lack of diligence in pursuing appellate relief undercuts his claim that an immediate stay of all trial proceedings is necessary.” (Opp., 5:23-6:10.)

In response, regarding

Chou’s delay, he asserts that “Defendants characterize the appellate history as evidence that Plaintiff cannot be trusted to prosecute the appeal expeditiously. (Opp. at pp. 2-3, 5-6.) That argument omits the dispositive event. On August 10, 2026, the Court of Appeal ordered that ‘the order of dismissal filed June 25, 2026, is vacated and the appeal filed February 13, 2026, is reinstated.’” (Reply, 3:12-16.) Chou contends that “[t]he Court of Appeal entered that order after reviewing the very procedural history Defendants now invoke. Defendants submitted a lengthy opposition urging denial of reinstatement based on the same alleged lack of diligence. The Court of Appeal rejected that argument and granted full relief. Plaintiff thereafter paid the required reporter’s transcript deposit on August 14, 2026. (Chou Deel., ¶ 5, Ex. G.) Appeal No. B353372 is not abandoned, jurisdictionally uncertain, or presently dismissed. It is an active, reinstated appeal operating under an express appellate order. Defendants’ predictions that Plaintiff may someday seek extensions do not justify conducting an irreversible jury trial now. If the Court desires continued supervision, Plaintiff does not oppose periodic appellate status conferences and an obligation to notify the Court

promptly of any material appellate event. Those measures address Defendants stated concern without sacrificing the appeal's practical value." (Reply, 3:20-4:3.)

In Chou's reply, he also asserts that "the competing hardships are not comparable. Defendants identify additional preparation costs and concerns about fading memories. Plaintiff- a sixty-year-old individual with no legal training, appearing in pro per, who has been unable to retain substitute counsel - faces an irreversible jury trial conducted while the right of his longtime counsel to represent him remains under appellate review. A complete, supervised stay preserves the case exactly as it stands, eliminates rather than aggravates the five-year issue, and avoids both parties' identified risks." (Reply, 3:3-8.)

Generally, an order denying attorney disqualification is collateral and would not affect the case. However, an order granting attorney disqualification is not as clear. As the court in *URS Corp.*, supra, 15 Cal.App.5th at pp. 887-888 expressed, "[i]n determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results." [Citation.] Trial court proceedings must be stayed if they would conflict with the appellate court's jurisdiction." "Although all trial court proceedings are not subject to the automatic stay, there are some potential issues embraced in or affected by the appeal from the disqualification order that could be subject to the automatic stay." (Id. at p. 888.)

Here, various factors are at play. Chou's appeal stays enforcement of the Court's disqualification order, so Chou's counsel may still represent him. However, trial is set for October 14, 2026, and must proceed then; otherwise, this case would run afoul of the five-year rule. Thus, a trial continuance is inadequate. For the impending trial date, Chou would either have to find new counsel, proceed in pro per, or proceed with his disqualified counsel. If Chou proceeds with disqualified counsel, and the Court of Appeal affirms this Court's Order granting disqualification, this could present unique and serious issues regarding whether trial would need to be reversed or vacated. (See *URS Corp.*, supra, 15 Cal.App.5th 872, at pp. 889-890 ["The order disqualifying Pepper Hamilton cannot be enforced pending this appeal, eliminating appellants' primary argument for irreparable harm. But appellants may be leery of continuing to litigate the case with Pepper Hamilton because an affirmance of the disqualification order

will mean they need to switch counsel at a later point in the litigation."].) Thus, the interests of judicial economy support a complete stay.

In addition, if Chou instead proceeds as a self-represented litigant or with new counsel, he may suffer substantial hardship. The Court finds Chou's demonstration of hardship clear and cognizable. Defendants also assert prejudice due to fading memories and costs involved in delay, but the Court finds that the hardship weighs in Chou's favor. Although Defendants contend that Chou delayed in requesting his appeal and did not seek a speedier result, the Court finds that these interests, although important, do not outweigh the impending five-year deadline and potential prejudice and structural errors that may occur if trial proceeds on October 14, 2026. In light of the foregoing, the Court grants Chou's motion to completely stay proceedings until the underlying appeal is resolved. The Court notes that this stay is effective as of the date of this Order, and it will pause the five-year dismissal clock pending the outcome of the appeal.

Conclusion

Based on the foregoing, Chou's motion for an order staying all proceedings in this action pending appeal is GRANTED. The Court orders this case STAYED in its entirety pending the outcome of the appeal.

Chou is ordered to give notice of this Order.

DATED: September 11, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court